

Rajesh Singh Solanki v. State of U.P.

Allahabad High Court · Division Bench · 18 August 2022 · WRIT - C No. 23320 of 2022 · **Writ disposed; Para 6.8 objection; coercive action stayed.**

HEADNOTE

Writ against two electricity demand notices disposed of without opinion on merits. Petitioner given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the DISCOM within four weeks; if filed, to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Rajesh Singh Solanki challenged before the Allahabad High Court two demand notices dated 13 April 2022 and 17 June 2022, claiming Rs. 28,79,907 plus a Rs. 2,20,000 summon fee, and sought certiorari to quash those notices together with mandamus restraining recovery of checking-team electricity charges. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand; alternate remedy

HOLDING

Without expressing any opinion on merits, the writ against the demand notices is disposed of by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the DISCOM within four weeks; if so filed, the objection shall be decided in accordance with law within the next four weeks after affording reasonable opportunity of hearing, and no coercive action shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ against demand notices disposed by directing a Para 6.8 objection, to be decided after hearing, with stay of coercive action pending that disposal. ¶ 1

para-6.8-objection-alternate-remedy The High Court declined merits adjudication and relegated the consumer to the statutory Para 6.8 objection before the DISCOM. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICES DATED 13.04.2022 AND 17.06.2022 AND THE CLAIMED ELECTRICITY CHARGES

Writ disposed of without expressing any opinion on merits. ¶ 1